

Court No. - 32

Case :- WRIT - C No. - 39816 of 2023

Petitioner :- M/S Om Heem Enterprises

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vikash Chandra Tiwari

Counsel for Respondent :- CSC,Pranjal Mehrotra

Hon'ble Salil Kumar Rai,J.

Hon'ble Surendra Singh-I,J.

1. On the request of learned counsel for the petitioner, the matter is adjourned for the day.
2. Put up on 05.12.2023 as fresh before the appropriate Court.

Order Date :- 20.11.2023

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Heard the counsel for the parties.

The present petition has been filed praying for a mandamus commanding the respondents, i.e., Paschimanchal Vidyut Vitran Nigam Limited, Meerut and its officers arrayed as respondent nos. 2 to 4 in the writ petition to provide a prepaid electricity connection in favour of the petitioner for Shop No. C-5/ R.D.C., Ist Floor, Opposite Bank of India, Rajnagar, R.D.C., Sector-15, Sector-10, Rajnagar, Ghaziabad.

The facts of the case as stated in the writ petition are that the petitioner initially occupied the premises as a tenant, but subsequently an agreement to sale dated 30.10.2014 was executed by the landlord in favour of the petitioner for sale of the premises. It has been stated in the writ petition that under the agreement to sale, the petitioner was liable to pay only Rs.43,50,000/-, but paid Rs.48,50,000/- to the landlord. The petitioner was given the prepaid connection for the premises, but the meter of the said connection was installed in the part of the premises which was in occupation of the landlord and the landlord with a mischievous intention locked the said portion disabling the petitioner from getting the meter recharged and the prepaid meter was permanently disconnected by the respondents. It has been stated that the petitioner is still in possession of the premises and is

entitled to a new electricity connection. It has been further stated in the writ petition that a Civil Suit numbered as Original Suit No. 121 of 2022 has already been instituted by the petitioner claiming his rights over the premises and the said case is pending before the Civil Judge (Senior Division), District Ghaziabad. It has been stated that the application of the petitioner for a new connection has been rejected by the respondents on the ground that there is some dispute regarding the ownership of the premises. The communication given to the petitioner and available on the website of the Corporation has been annexed as annexure no. 7 to the petition.

It was argued that under the relevant statutes, i.e., the Electricity Supply Code, 2005, the petitioner is entitled to a new connection as he is an occupier of the premises and a new connection cannot be refused in view of Clause 4.4 and 4.39 of the Electricity Supply Code, 2005. It was argued that in view of the aforesaid, the act of the respondents is contrary to law and the petition is to be allowed granting the prayer prayed for by the petitioner.

Shri Pranjal Mehrotra, the counsel for the respondents has obtained instructions and on the basis of his instructions, states that the electricity lines of the petitioner were permanently disconnected because of his failure to get the previous connection, which was a prepaid connection, recharged after six months and also because there is an ownership dispute between the petitioner and other persons in relation to the premises. It was argued that for the aforesaid reason, the petition lacks merit and is liable to be dismissed.

It is not denied by the respondents that the petitioner is an occupier in the premises. Clause 4.4(a)(i) provides:-

"(a) Application for new connections, in prescribed form (Annexure 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with attested true copies of the following documents:-

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heirship certificate or deed of last will or proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annexure 4.2. Order copy of appropriate Court, in case of litigation regarding ownership of the premises, has to be enclosed."

Under Clause 4.4(a)(i), the petitioner is entitled to be considered for an electricity connection and cannot be denied an electricity connection only because there is an ownership dispute regarding the premises or because the petitioner is not at present the owner of the premises.

In Writ - C No. 28295 of 2014, vide its order dated 26.5.2014, a Division Bench of this Court while allowing the writ petition of occupier of the premises held that:

"In view of the aforesaid facts and discussions, the petitioner being occupier of the premises in question as a tenant has a legal right to obtain electricity connection and the respondents licensee was under an obligation to give connection for supply of electrical energy and the same could not have been refused solely for want of consent of the owner/landlord of the premises."

So far as the case of respondent-Corporation that there is no provision for granting a new connection once the previous prepaid connection is not recharged and, therefore, permanently disconnected is concerned, the same also appears to be erroneous in light of Clause 4.39 of the Electricity Supply Code, 2005. The fact that the previous connection was permanently disconnected only prohibits re-connection and enjoins the consumer to apply for a new connection. It is not the case of the Corporation that the petitioner is claiming a re-connection. The petitioner has stated in the writ petition that he has applied for a new connection.

For the aforesaid reasons, the petition is to be ***allowed***.

The Executive Engineer, Paschimanchal Vidyut Vitran Limited, Meerut, i.e., respondent no. 2 is directed to consider the application of the petitioner for a new connection in light of the observations made above and in view of the judgment dated 26.5.2014 of the Division Bench of this Court in Writ - C No. 28295 of 2014 within a period of ten days from the date a certified copy of this order is produced before him.

Order Date :- 5.12.2023

Vipasha